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Case Name: *Erdan Liu, et al. v. El Patron Demolition, Inc.*

Case No.: 25CV467528

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Petitioners Erdan Liu and Kyle Kai Kwong, Trustees of the Erdan Liu and Kyle Kai Kwong Joint Living Trust dated December 4, 2023 (“Petitioners”) move to remove the mechanics lien recorded by El Patron Demolition, Inc. (“Respondent”) on the real property located at 134 Beatric Street, Mountain View, California 94303, County of Santa Clara, Assessor’s Parcel No. 150-21-022 (the “Property”). Notice of Motion (the “Motion”) at 1:22-2:4 (filed: Dec. 9, 2025).

The Motion came on for hearing on September 2, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

I. Background Facts & Procedural Posture

Petitioners are the owners of the Property. On or about November 27, 2024, a Mechanics Lien in the amount of \$56,000 was recorded against the Property in the Official Records of Santa Clara County, Document No. 25736581, by El Patron Demolition, Inc. (“Respondent”). The recorded lien claims the sum of \$56,000.00 together with interest thereon at the rate of 10.00 percent per annum from August 3, 2024, is due Respondent for excavation, hauling, and dump fees. The lien document states on its face that Respondent furnished the work and materials at the request of, or under contract with, Elk’s Construction, Inc., 7576 Peach Blossom Drive, Cupertino, CA 95014.

Petitioners’ counsel sent a written demand letter on May 15, 2025 via certified mail to Respondent El Patron Demolition, Inc. at its Stockton business address. The USPS eReceipt shows a First-Class Mail/Certified Mail item mailed from the 150 Sutter Street, San Francisco post office to Stockton, CA 95209, bearing Certified Mail Tracking No. 9589 0710 5270 1984 1456 09, at a total charge of \$5.58, with an estimated delivery date of Saturday, May 17, 2025. The demand letter identified the lien, demanded its release, and stated multiple grounds for its release, including that lien was recorded on November 27, 2024, and the deadline to file suit expired on February 25, 2025. No such action was filed or served and lack of contractual relationship. The demand required Respondent to execute and record a Release of Mechanics Lien with the Santa Clara County Recorder’s Office within 10 calendar days. After the deadline expired, Respondent failed to comply with the demand.

On June 13, 2025, Petitioners commenced this action by filing the Verified Petition

for Judicial Release under California Civil Code section 8480 (the “Verified Petition”), and filed this noticed Motion on December 9, 2025.

No opposition has been filed.

II. Legal Standard on Motion to Remove Mechanics Lien

This is a summary proceeding under California Civil Code section 8480. Once the owner is in a position to proceed under section 8480 and has satisfied the prerequisites to relief under section 8482, the claimant of the lien must justify the continued existence of the lien. So here, Petitioners bear the initial burden of establishing statutory compliance and facial grounds for relief, and Respondent bears the burden of proving lien validity.

III. Petitioners’ Motion is Granted Because the Mechanics Lien on the Property is Void.

California Civil Code section 8460(a) provides in mandatory language that the claimant of the lien “*shall* commence an action to enforce a lien within 90 days after recordation of the claim of lien. If the claimant does not commence an action to enforce the lien within that time, the claim of lien expires and is unenforceable.” Civil Code § 8460(a). That statutory language is a plain as it gets.

The 90-day period runs from the date of recordation. The consequence of failing to commence suit within the time designated by the statute is that the lien becomes null and void, automatically and by operation of law. Civil Code § 8460(a).

Here, the undisputed evidence establishes that the lien was recorded on November 27, 2024. Counting from that date under Code of Civil Procedure section 12, the 90-day deadline expired on February 25, 2025. The record further establishes that no action to foreclose the Mechanics Lien has been filed or served by the Respondent, and so the lien is now legally unenforceable. Civil Code § 8460(a).

Respondent has submitted no proof of filing, complaint, summons, or service of any foreclosure action. No evidence of any credit-arrangement extension under Civil Code section 8460(b) appears in the record.

Because the 90-day period expired on February 25, 2025, and no foreclosure action was commenced within that time, the lien expired and became void and unenforceable by law. Civil Code § 8460(a). Hence, after carefully reviewing the Verified Petition and the Motion and all supporting papers and the record, the Court finds that Respondent’s \$56,000 mechanics lien is void as a matter of law under California Civil Code section 8460(a).

Respondent does not argue otherwise. Indeed, Respondent has not opposed the Motion at all, which the Court views as Respondent conceding the Motion in its entirety. *D.I. Chadbourne, Inc. v. Super. Ct.* (1964) 60 Cal.2d 723, 728, fn. 4.; California Practice Guide: Civil Procedure Before Trial ¶ 9:105.10, Ch. 9 at pp. 94-95 (failure to file

opposition papers to motion is treated “as an admission that the motion is meritorious”) (Weil & Brown, The Rutter Group, 2025 Ed.); *see also* Rule of Court 8.54(c): “A failure to oppose a motion may be deemed a consent to the granting of the motion.” CRC Rule 8.54(c).

Hence, the Court **GRANTS** Petitioners’ Motion to remove the mechanics lien on the Property because the lien expired and is void and unenforceable as a matter of law.⁵ Accordingly, the Court **ORDERS** the mechanics lien on the Property be released, expunged, and removed now.

IV. Petitioners’ Accompanying Request For Attorneys’ Fees is Denied Without Prejudice Because Petitioners Do Not Submit Evidence Supporting That Request.

California Civil Code section 8488(c) provides that the prevailing party on a motion to remove mechanics “is entitled to reasonable attorney’s fees.” Civil Code § 8488(c). By its plain text, entitlement to reasonable fees under this section is mandatory once prevailing-party status is established. And a party who obtains judicial release of an invalid lien is the prevailing party for purposes of this statutory fee award.

Here, Petitioners made a proper Section 8482 demand, Respondent failed to comply, and so Petitioners filing this Verified Petition and Motion became necessary to clear title on the Property. And because the Court **GRANTS** the Verified Petition and Motion by **ORDERING** release and expungement of the mechanics lien, Petitioners are the prevailing party under Civil Code section 8488(c) and so are entitled to recover their reasonable attorney’s fees.

But in order for the Court to determine and award Petitioners their *reasonable* attorney’s fees under Civil Code Section 8488(c), Petitioners have the burden of providing evidence of what their reasonable attorneys’ fees here are. Here, Plaintiffs failed to submit and the record does not contain a declaration itemizing the hours expended and sought by Petitioner to be awarded here, the hourly *rates* of Petitioners’ counsel sought here, or a lodestar calculation. California law requires the fee applicant to document reasonable hours and rates—and Petitioners have failed to do so here. Hence, the Court cannot determine a reasonable fee amount without that requisite evidence.

Accordingly, while the Court finds that Petitioners as the prevailing parties here are entitled to recover reasonable attorney’s fees under California Civil Code section 8488(c), the Court **DENIES WITHOUT PREJUDICE** their request for attorneys’ fees here because they failed to itemize and provide supporting documents and evidence establishing the fees sought.

As this denial is without prejudice, the Court grants Petitioners **LEAVE** to file a

⁵ Because the Court **GRANTS** the Motion on this ground, the Court need not and does not address remaining arguments made by Petitioners in its Motion.

supplemental declaration, if they choose to do so, within 30 days of today itemizing counsel's hours, hourly rate, and total fees incurred, together with supporting documentation, so the Court may determine and award the reasonable attorney-fee amount.

V. Conclusion & Order

Petitioners' Motion for judicial release of the mechanics lien on the Property is **GRANTED**.

Specifically, the Court **ORDERS** that mechanics lien recorded on the Property on November 27, 2024, by El Patron Demolition, Inc., in the amount of \$56,000, recorded as Document No. 25736581 in the Official Records of Santa Clara County, California, is void and unenforceable as a matter of law under California Civil Code section 8460(a) and is hereby **RELEASED, EXPUNGED, and REMOVED** from the official records of Santa Clara County. The Santa Clara County Recorder is directed to note this **ORDER** on Document No. 25736581 in the Official Records.

Regarding Petitioners' accompanying request for attorneys' fees as the prevailing party on this Motion, that request is **DENIED WITHOUT PREJUDICE** because Petitioners failed to itemize and provide any evidence supporting the number of hours of attorney time sought, the hourly rates sought, and the total fees sought. However, the Court gives Petitioners **LEAVE** to file a supplemental declaration, if they choose to do so, within 30 days of today itemizing hours, rates, and total fees so the Court may determine and award the reasonable attorney-fee amount.

SO ORDERED.

Date: September 2, 2026

Vincent I. Parrett
Judge of the Superior Court of California,
County of Santa Clara

Line 8

Case Name: *Theo Van Buren v. Bill Holdings Inc., et al.*

Case No.: 25CV480145

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendants Bill Holdings, Inc.⁶, Spencer Pratt, and Milind Nimesh (“Defendant”) move under California Code of Civil Procedure Sections 473(b) and 473.5, *inter alia*, to set aside the Entries of Default entered on February 24, 2026 against Bill Holdings, Inc. and Spencer Pratt, and pending on March 2, 2026 against Milind Nimesh. Notice of Motion (the “Motion”) at 2:22-27 (filed: March 4, 2026).

The Motion came on for hearing on September 2, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

On February 24, 2026, the only Entry of Default that was ever entered by the Clerk of the Court in this case against any Defendant was a “Basic Only” (no dollar amount) Entry of Default made on February 24, 2026 against *only* Defendants Bill Holdings, Inc. and Spencer Pratt. That “Basic Only” February 24, 2026 contains no dollar amounts at all and contains no Judgment to be entered against Defendants Bill Holdings, Inc. and Spencer Pratt. Regarding Defendant Milind Nimesh, that same document states that it was “NOT entered” against Milind Minesh because of various defects. (Request for Entry of Default) (see For Court Use Only section at bottom of p. 1 explaining “Default entered” and “NOT entered” here) (filed: Feb. 24, 2026).

While Plaintiff subsequently did submit multiple Requests for Default for Court Judgment (with dollar amounts listed) against Defendants Bill Holdings, Inc. and Spencer Pratt on March 20, 2026 and April 16, 2026, those Defaults were NOT entered by the Clerk because of various defects. They were all rejected.

Regarding Defendant Milind Minesh, no Default was ever entered against Defendant Milind Minesh in this case. And there are no pending Requests for Entry of Default against Defendant Milind Minesh in this case either.

All that said, Defendants’ Motion to set aside the Entries of Default entered on February 24, 2026 against Defendants Bill Holdings, Inc. and Spencer Pratt, and (construed by Defendants as) pending on March 2, 2026, against Defendant Milind

⁶ While this Defendant refers to itself in its moving papers as Bill.com, for clarity of the record the Court refers to this Defendant in this Order by the name by which it was sued in this case: Bill Holdings, Inc.